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the 22d section of the constitution of New Jersey) that no man can put off his allegiance. Hale's H. P. C. 68. 1 Bl. Com. 369. *Macdonald's Case*, Fost. Cr. Law 59. It is true, that Blackstone speaks of that allegiance which is coeval with birth; distinguishing it from local allegiance, arising from temporary residence. But the allegiance due from Daniel Coxe was not of the latter kind; it did not arise and terminate with his residence in New Jersey. It sprung from his inhabitancy in New Jersey, when it created itself a state, from his being then, in common with all around him, a subject of the king; from the change which those around him, in the course of successful resistance, made in the form of their political society, by acts in which the majority must compel the acquiescence of the smaller number. That the minority were bound by the acts of the majority, was decided by Ch. J. ELLSWORTH, in the circuit court in North Carolina, in the case of *Hamilton v. Eaton*.¹

Birth is but evidence of allegiance. At the time of a revolution, residence is equally evidence of allegiance to the new government. Indeed, it is stronger, if the person be of mature age. It may, at least, be considered as a new birth. It was a natural allegiance; as society is natural to man, and allegiance is natural to society. But without playing on the word, it may be characterized as permanent allegiance; the opposite of temporary.

*It is said, that he never was to be considered as a citizen of New Jersey, or if he was, that he expatriated himself. 1. That, like Chapman, he made his election before any new government was formed, and on the dissolution of the old one; and therefore, never was a subject of the state of New Jersey. But the distinction between these two cases will be wide and glaring. Chapman left Pennsylvania, the 26th of December 1776; Coxe, not until September 1777. Chapman was acquitted, because he had left the state before the 11th of February 1777, on which day the laws of the then late province were to be revived, according to an act passed on the 28th of January 1777; and on which day, the act passed, declaring what should be treason, and that all persons "now inhabiting, &c., within the limits of the state of Pennsylvania, do owe allegiance," &c. It was, therefore, declared, that he was not a subject, at the time of his quitting the state of Pennsylvania; and the attorney-general having averred that he was a subject and inhabitant of the commonwealth, it was held, that the issue was not maintained on his part. If Chapman had resided in the state, on the 11th of February 1777, he would, on the very principles of his own defence, have been liable to indictment.

But Coxe was an inhabitant of the state of New Jersey, on the 4th of October 1776, when a declaratory law, similar to that of Pennsylvania, was passed. After which, it was too late for him to attempt to change sides. He was then fixed as a subject, and liable to indictment for treason. Being thus, on the one hand, subject to the penalties resulting from his civil relation to the commonwealth, he is, on the other, entitled by natural and equal justice to the benefits of that relation.

W. Tilghman admitted, that by the law of New Jersey, Daniel Coxe was to be considered as a subject of New Jersey by force; and that the

¹ Mart. (N. C.) 1; s. c. 1 Hughes 249.

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state had a right to make such a law. He had argued only upon the general ground, independent of the law of New Jersey.

Rawle.—It is admitted, then, that he could not make his election, until the peace of 1783. It was the first time he *ever heard, that after an arduous conflict has successfully terminated, by means of the [*301 energy and exertions of a majority of the people, each individual of the minority had a right of election, which should look back and give a new aspect to his conduct through the period of the struggle.

W. Tilghman stated, that he did not contend for such an election, but that all the citizens of the United States, after the peace of 1783, had a right of expatriation, and Daniel Coxe among the rest.

Rawle.—Let us, then, consider this supposed expatriation, this imaginary dereliction of his country and his rights, this abjuration not only of allegiance, but capacity to inherit, which is to operate against him as a political estoppel; or, like the ancient confession of villenage, is to deprive him at once of all power to take by descent or purchase. It is, perhaps, a sufficient answer, to say, that expatriation is a fact which ought to be found.

Our opponents have piled together a confused and shapeless mass of evidence, on which this court cannot act. Since, even if expatriation had been allowed by the constitution or laws of New Jersey, all the different facts put together would not amount to the technical fact of expatriation; and since, if expatriation be not allowed, they are of no more importance than finding whether Mr. Coxe wore a blue coat or a brown one.

The circumstances most relied on to prove Daniel Coxe's expatriation, is his carrying on commerce as a British subject. In this respect, there has been a liberal construction of the rights of citizens of the United States, in the British courts, even as to their navigation act. They have, for the purposes of commerce, held that a person might be a British subject, as to his duty of allegiance, and a citizen of the United States, as to his commercial character. Thus, in the case of *Marryat v. Wilson*, 1 Bos. & Pul. 430, 444, it was held, that "both characters may stand together," and so, in all cases, so far as there are no conflicting duties, a man may be a subject of many different governments, and may enjoy the benefits conferred upon him by all. The right of Daniel Coxe to hold land *in New Jersey does not conflict with any duty which he owes as a British subject. [*302 His becoming a subject of Great Britain, therefore, as to purposes of commerce, is not evidence that he had renounced his rights as a citizen or subject of New Jersey. Nor does it follow, because he is a British subject, that he is not also an American citizen. 1 Bl. Com. 369, 376; *Talbot v. Jansen*, 3 Dall. 169.

What, then, is expatriation? It is said to be an operation, by which a citizen is made an alien. And it is contended, that although Daniel Coxe was once a citizen of New Jersey, it was against his will, and that the moment he had it in his power, by the peace, to throw off that character, he did it, and by becoming a subject of the King of Great Britain, he became an alien to New Jersey, and therefore, not capable of taking lands by descent, in that state.

Many of the writers upon this subject have confounded expatriation with emigration; and hence has resulted great confusion. But the ideas are

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very different and distinct. Expatriation is a matter of municipal regulation. Emigration is of right. It cannot be restrained, without injustice and even violence: expatriation cannot be effected, without public consent. Expatriation dissolves the original obligation of the citizen; emigration only suspends its activity. Expatriation incapacitates from taking lands in future; emigration retains that capacity. Expatriation renders the future issue aliens; emigration does not impair the right to be received as citizens. Expatriation is an inconvenient and inflexible deprivation. *Emigration destroys no rights, but facilitates the commerce and improvement of man. Hence, in no states, not depressed by the severest despotism, is emigration prevented. In very few, is expatriation even known.

Of the seventeen United States, one only (Virginia) has recognised or provided for it by law. In the constitutions of the other states, which have been cited, it is the right of emigration only which is protected, and not a word is said of expatriation. In the laws of Great Britain, there is no such term or idea, as expatriation: it is altogether unknown.

As soon as a man has expatriated himself, his lands would escheat, and he would be divested of all the rights of a citizen. There has been yet no case in practice where the lands of an expatriated citizen have been escheated. It is inconsistent with the nature of expatriation, that the party be permitted to retire from the community, for purposes hostile to its welfare. No citizen can expatriate himself, for the purpose of committing an act which would be treason, without such expatriation. There ought also to be some municipal regulation defining the evidence and the mode, and declaring the assent of the government. *Talbot v. Jansen*, 3 Dall. 133. If Daniel Coxe had set up this defence on an indictment for treason, it would not have availed him.

If, then, his liabilities on the one hand, and his rights on the other, remained in full force, at the time of his departure; if he took with him the capacity as well as the responsibility of a citizen; are the subsequent events of his life to act retrospectively on his departure, and tear asunder the ties which bound him in 1777? If such an effect can arise from these causes, the *quo animo*, the intention, ought to have been found, especially, as it is a recognised principle, that a man may owe allegiance to two countries at the same time, and therefore, *may lawfully have the intention of owing allegiance to both Great Britain and New Jersey. The court cannot decide that it was with intent to expatriate. *Calvin's Case*, 7 Co. 27 a, b; 2 Tucker's Blackstone, App. 53; *Apthorp v. Backus*, Kirby 407.

The counsel for the plaintiff in error have divided their case into three questions, according to three periods of time, in the solution of which they have employed much ingenuity.

1. From the beginning of the revolution to the peace of 1783. This period seems to be nearly conceded; at least, it is admitted, that the state had a right to compel the inhabitants to become members of the new state or society. It seems to be admitted also, that there is a sufficient finding of his residence in New Jersey until 1777, to bring him within all the laws of that state. The test laws of 1778 could not have influenced his departure in 1777; nor did they give him any right to dissolve the connection; because the penalties imposed were the consequences of political offence; the punishment of treasonable flight. And to suppose that a man, by staying away to